

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO H.B. 2192
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 23, chapter 2, Arizona Revised Statutes, is
3 amended by adding article 6.2, to read:

4 ARTICLE 6.2. CONTENT CREATION

5 23-345. Definitions

6 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "CONTENT CREATOR":

8 (a) MEANS A PARENT OR LEGAL GUARDIAN WHO RESIDES IN THIS STATE AND
9 WHO CREATES AN IMAGE OR VIDEO CONTENT THAT IS PERFORMED IN THIS STATE IN
10 EXCHANGE FOR COMPENSATION.

11 (b) INCLUDES A PARENT OR LEGAL GUARDIAN WHO IS A:

12 (i) VLOGGER.

13 (ii) PODCASTER.

14 (iii) ONLINE INFLUENCER.

15 (iv) STREAMER.

16 (c) DOES NOT INCLUDE ANY MINOR WHO PRODUCES THE MINOR'S OWN VIDEO
17 CONTENT.

18 2. FRIENDING FUNCTION DOES NOT INCLUDE SUBSCRIBING TO CONTENT FROM
19 ANOTHER ACCOUNT HOLDER.

20 3. "MINOR" MEANS A NATURAL PERSON WHO IS UNDER EIGHTEEN YEARS OF
21 AGE AND WHO RESIDES IN THIS STATE.

22 4. "ONLINE HOSTING PLATFORM" MEANS A PUBLIC OR SEMIPUBLIC
23 INTERNET-BASED SERVICE OR APPLICATION THAT HAS ACCOUNT HOLDERS IN THIS
24 STATE AND THAT MEETS ANY OF THE FOLLOWING CRITERIA:

25 (a) CONNECTS ACCOUNT HOLDERS WITH OTHER ACCOUNT HOLDERS, WHICH
26 ALLOWS THE ACCOUNT HOLDERS TO INTERACT SOCIALLY WITHIN THE SERVICE OR
27 APPLICATION.

1 (b) ALLOWS PUBLIC POSTING OR ACCOUNT HOLDER-GENERATED CONTENT
2 WITHOUT VISIBILITY BEING LIMITED TO A PARTICULAR SOCIAL GRAPH.
3 (c) ALLOWS INTERACTION WITH OTHER ACCOUNT HOLDERS' CONTENT OUTSIDE
4 A LIMITED SOCIAL GRAPH THAT INCLUDES CONTENT RECOMMENDATIONS FROM
5 INDIVIDUALS THAT THE ACCOUNT HOLDER DOES NOT FOLLOW.
6 5. "SOCIAL GRAPH" MEANS THE LIST OF INDIVIDUALS ON AN ONLINE
7 HOSTING PLATFORM THAT AN ACCOUNT HOLDER IS CONNECTED TO BY USING A
8 FRIENDING FUNCTION OR OTHER SIMILAR FUNCTIONALITY.
9 6. "UNIQUELY IDENTIFIABLE":
10 (a) MEANS AN INDIVIDUAL WHO IS ABLE TO IDENTIFY ANOTHER INDIVIDUAL
11 BASED ON PERSONAL IDENTIFYING INFORMATION THAT INCLUDES:
12 (i) THE NAME.
13 (ii) THE CONTACT INFORMATION.
14 (iii) AN IMAGE.
15 (iv) A VOICE.
16 (b) DOES NOT INCLUDE THE INDIVIDUAL WHO SUBMITS A PRIVACY REMOVAL
17 REQUEST.
18 7. "VIDEO CONTENT":
19 (a) MEANS CONTENT SHARED ON AN ONLINE HOSTING PLATFORM IN EXCHANGE
20 FOR COMPENSATION.
21 (b) INCLUDES CONTENT THAT IS CREATED BY A CONTENT CREATOR.
22 23-346. Content creators; compensation to minors; reporting
23 period; civil action
24 A. IF A MINOR IS INCLUDED IN VIDEO CONTENT AT ANY TIME WITHIN A
25 PREVIOUS TWELVE-MONTH PERIOD, THE MINOR SHALL BE COMPENSATED IF ALL OF THE
26 FOLLOWING CRITERIA ARE MET:
27 1. AT LEAST THIRTY PERCENT OF THE CONTENT CREATOR'S COMPENSATED
28 VIDEO CONTENT PRODUCED WITHIN A THIRTY-DAY PERIOD INCLUDES THE LIKENESS,
29 NAME OR PHOTOGRAPH OF THE MINOR. CONTENT PERCENTAGE IS MEASURED BY THE
30 PERCENTAGE OF TIME THE LIKENESS, NAME OR PHOTOGRAPH OF THE MINOR VISUALLY
31 APPEARS OR IS THE SUBJECT OF AN ORAL NARRATIVE IN THE VIDEO SEGMENT AS
32 COMPARED TO THE TOTAL LENGTH OF THE SEGMENT.
33 2. THE NUMBER OF VIEWS RECEIVED PER VIDEO SEGMENT ON THE ONLINE
34 HOSTING PLATFORM SATISFIES THE ONLINE HOSTING PLATFORM'S THRESHOLD TO
35 GENERATE COMPENSATION OR THE CONTENT CREATOR RECEIVES ACTUAL COMPENSATION
36 FOR THE VIDEO CONTENT EQUAL TO OR MORE THAN \$.10 PER VIEW.
37 3. THE CONTENT CREATOR RECEIVES ACTUAL COMPENSATION FOR THE VIDEO
38 CONTENT OF AT LEAST \$15,000 IN THE PRIOR TWELVE-MONTH PERIOD.
39 B. A MINOR WHO IS AT LEAST THIRTEEN YEARS OF AGE MAY PRODUCE,
40 CREATE AND PUBLISH THEIR OWN VIDEO CONTENT AND IS ENTITLED TO ALL
41 COMPENSATION FOR THEIR OWN CONTENT CREATION.
42 C. A CONTENT CREATOR WHO FEATURES A MINOR IN THEIR VIDEO CONTENT AS
43 PRESCRIBED IN SUBSECTION A OF THIS SECTION SHALL MAINTAIN ALL OF THE
44 FOLLOWING RECORDS UNTIL THE MINOR REACHES TWENTY-ONE YEARS OF AGE:

1 1. THE NAME AND DOCUMENTARY PROOF OF THE AGE OF THE MINOR WHO WAS
2 FEATURED IN THE VIDEO CONTENT.
3 2. THE NUMBER OF POSTS THAT GENERATED COMPENSATION DURING ALL
4 REPORTING PERIODS.
5 3. THE TOTAL NUMBER OF MINUTES OF THE POSTS THAT THE CONTENT
6 CREATOR RECEIVED COMPENSATION FOR DURING THE REPORTING PERIOD.
7 4. THE TOTAL NUMBER OF MINUTES EACH MINOR WAS FEATURED IN POSTS
8 DURING THE REPORTING PERIOD.
9 5. THE TOTAL COMPENSATION GENERATED FROM POSTS FEATURING A MINOR
10 DURING THE REPORTING PERIOD.
11 6. THE AMOUNT DEPOSITED IN THE TRUST ACCOUNT FOR THE BENEFIT OF THE
12 MINOR ENGAGED IN THE VIDEO CONTENT.
13 D. AT REGULAR INTERVALS, A CONTENT CREATOR SHALL PROVIDE NOTICE TO
14 THE MINOR OF THE EXISTENCE OF THE RECORDS PURSUANT TO SUBSECTION C OF THIS
15 SECTION. THE RECORDS REQUIRED IN SUBSECTION C OF THIS SECTION MUST BE
16 READILY ACCESSIBLE TO THE MINOR FOR REVIEW.
17 E. IF THE CONTENT CREATOR DOES NOT MAINTAIN RECORDS AS REQUIRED IN
18 SUBSECTION C OF THIS SECTION, THE MINOR MAY COMMENCE AN ACTION TO ENFORCE
19 THIS SECTION. THE COURT MAY AWARD TO A MINOR WHO PREVAILS IN ANY ACTION
20 BROUGHT IN ACCORDANCE WITH THIS SECTION THE FOLLOWING DAMAGES:
21 1. INJUNCTIVE RELIEF.
22 2. ACTUAL DAMAGES.
23 3. PUNITIVE DAMAGES.
24 4. THE COSTS OF THE ACTION, INCLUDING ATTORNEYS FEES AND LITIGATION
25 COSTS.
26 23-347. Trust account for minors; requirements; civil action
27 A. A CONTENT CREATOR SHALL COMPENSATE A MINOR WHO WAS FEATURED IN
28 THE CONTENT CREATOR'S VIDEO CONTENT. THE CONTENT CREATOR SHALL DEPOSIT
29 GROSS EARNINGS ON THE VIDEO CONTENT THAT INCLUDES THE LIKENESS, NAME OR
30 PHOTOGRAPH OF THE MINOR IN A TRUST ACCOUNT THAT IS TO BE PRESERVED FOR THE
31 BENEFIT OF THE MINOR UNTIL THE MINOR IS AT LEAST EIGHTEEN YEARS OF AGE
32 ACCORDING TO EITHER OF THE FOLLOWING DISTRIBUTIONS:
33 1. IN WHICH ONLY ONE MINOR MEETS THE CONTENT THRESHOLD PRESCRIBED
34 IN SECTION 23-346, SUBSECTION A, THE PERCENTAGE OF TOTAL GROSS EARNINGS ON
35 ANY VIDEO SEGMENT, INCLUDING THE LIKENESS, NAME OR PHOTOGRAPH OF THE
36 MINOR, THAT IS EQUAL TO OR MORE THAN HALF OF THE CONTENT PERCENTAGE THAT
37 INCLUDES THE MINOR.
38 2. IN WHICH MORE THAN ONE MINOR MEETS THE CONTENT THRESHOLD
39 PRESCRIBED IN SECTION 23-346, SUBSECTION A AND A VIDEO SEGMENT INCLUDES
40 THE LIKENESS, NAME OR PHOTOGRAPH OF MORE THAN ONE MINOR, THE PERCENTAGE
41 PRESCRIBED IN PARAGRAPH 1 OF THIS SUBSECTION MUST BE EQUALLY DIVIDED
42 BETWEEN ALL MINORS, REGARDLESS OF ANY DIFFERENCE IN CONTENT PERCENTAGE
43 PROVIDED THE MINORS AND DEPOSITED IN A SEPARATE TRUST FOR EACH MINOR.
44 B. AT A MINIMUM, A TRUST ACCOUNT REQUIRED IN THIS SECTION MUST:
45 1. BE HELD BY A BANK, CORPORATE FIDUCIARY OR TRUST COMPANY.

1 2. HOLD THE MONIES FOR THE MINOR ONLY.
2 3. DISBURSE THE MONIES IN THE ACCOUNT TO THE MINOR:
3 (a) WHEN THE MINOR IS AT LEAST EIGHTEEN YEARS OF AGE.
4 (b) ON THE MINOR'S EMANCIPATION.
5 (c) ON THE ACCOUNT MEETING THE REQUIREMENTS OF TITLE 14, CHAPTER 7,
6 ARTICLE 7.
7 C. IF A CONTENT CREATOR KNOWINGLY OR RECKLESSLY VIOLATES SUBSECTION
8 A OR B OF THIS SECTION, THE MINOR MAY COMMENCE AN ACTION TO ENFORCE THIS
9 SECTION. THE COURT MAY AWARD TO A MINOR WHO PREVAILS IN ANY ACTION THE
10 FOLLOWING DAMAGES:
11 1. INJUNCTIVE RELIEF.
12 2. ACTUAL DAMAGES.
13 3. PUNITIVE DAMAGES.
14 4. THE COSTS OF THE ACTION, INCLUDING ATTORNEYS FEES AND LITIGATION
15 COSTS.
16 D. THIS SECTION DOES NOT AFFECT A RIGHT OR REMEDY AVAILABLE UNDER
17 ANY OTHER LAW OF THIS STATE.
18 E. THIS SECTION DOES NOT APPLY TO A PARTY THAT IS NOT A CONTENT
19 CREATOR OR A MINOR WHO IS ENGAGED IN THE WORK OF VIDEO CONTENT.
20 23-348. Content removal requests; online hosting platforms;
21 private right of action
22 A. ON THE EFFECTIVE DATE OF THIS SECTION, AN INDIVIDUAL WHO IS AT
23 LEAST EIGHTEEN YEARS OF AGE OR IS AN EMANCIPATED MINOR AND WHO WAS
24 FEATURED IN A CONTENT CREATOR'S VIDEO CONTENT AS A MINOR MAY REQUEST THAT
25 THE CONTENT CREATOR DELETE OR EDIT THE VIDEO CONTENT FROM THE ONLINE
26 HOSTING PLATFORM TO REMOVE THE MINOR'S UNIQUELY IDENTIFIABLE INFORMATION.
27 B. ONLINE HOSTING PLATFORMS SHALL PROVIDE AN EASILY ACCESSIBLE
28 MECHANISM THROUGH WHICH A REMOVAL REQUEST CAN BE SUBMITTED TO DELETE OR
29 EDIT THE VIDEO CONTENT FROM THE ONLINE HOSTING PLATFORM TO REMOVE THE
30 MINOR'S UNIQUELY IDENTIFIABLE INFORMATION. THE MECHANISM MAY INCLUDE
31 TOOLS THAT ENABLE INDIVIDUALS TO SUBMIT A REQUEST DIRECTLY TO THE CONTENT
32 CREATOR.
33 C. REMOVAL REQUESTS MUST INCLUDE ALL INFORMATION REASONABLY
34 REQUESTED TO IDENTIFY THE MINOR IN THE VIDEO CONTENT.
35 D. ONLINE HOSTING PLATFORMS THAT DO NOT PROVIDE A MECHANISM THAT
36 ENABLES AN INDIVIDUAL TO SUBMIT A REQUEST DIRECTLY TO THE CONTENT CREATOR
37 SHALL NOTIFY THE CONTENT CREATOR WITHIN A REASONABLE TIME PERIOD BUT NOT
38 LONGER THAN THIRTY DAYS ON RECEIPT OF A REQUEST TO REMOVE VIDEO CONTENT.
39 E. THE CONTENT CREATOR SHALL DELETE THE VIDEO CONTENT FROM THE
40 ONLINE HOSTING PLATFORM OR EDIT THE VIDEO CONTENT FROM THE ONLINE HOSTING
41 PLATFORM TO REMOVE THE MINOR'S UNIQUELY IDENTIFIABLE INFORMATION WITHIN
42 SEVENTY-TWO HOURS OF RECEIPT.
43 F. IF THE CONTENT CREATOR FAILS TO REMOVE THE CONTENT WITHIN A
44 REASONABLE PERIOD OF TIME BUT NOT MORE THAN THIRTY DAYS ON RECEIPT FROM
45 THE ONLINE HOSTING PLATFORM, THE INDIVIDUAL WHO REQUESTED REMOVAL MAY

1 COMMENCE AN ACTION AGAINST THE CONTENT CREATOR TO ENFORCE THIS
2 SECTION. AN ONLINE HOSTING PLATFORM MAY NOT BE A PARTY TO THE ACTION
3 AGAINST A CONTENT CREATOR IF THE ~~[ACTION]~~ [ONLINE HOSTING PLATFORM]
4 COMPLIES WITH THE REQUIREMENTS OF SUBSECTIONS B AND D OF THIS SECTION. IF
5 THE INDIVIDUAL WHO REQUESTED REMOVAL PREVAILS IN AN ACTION, THE COURT MAY
6 GRANT ANY OF THE FOLLOWING:
7 1. INJUNCTIVE RELIEF.
8 2. ACTUAL DAMAGES.
9 3. PUNITIVE DAMAGES.
10 4. THE COSTS OF THE ACTION, INCLUDING ATTORNEYS FEES AND LITIGATION
11 COSTS.
12 G. IF A CONTENT CREATOR FAILS TO TAKE ACTION AFTER A REASONABLE
13 PERIOD OF TIME BUT NOT MORE THAN THIRTY DAYS, THE ONLINE HOSTING PLATFORM
14 SHALL REVIEW AND TAKE ALL REASONABLE STEPS THAT ARE CONSISTENT WITH THE
15 HOSTING PLATFORM'S POLICIES TO REMOVE THE CONTENT FROM THE ONLINE HOSTING
16 PLATFORM UNLESS:
17 1. THE INDIVIDUAL WHO WAS FEATURED IN THE CONTENT CREATOR'S VIDEO
18 CONTENT AS A MINOR DOES NOT SUBMIT SUFFICIENT, ACCURATE INFORMATION.
19 2. THE ONLINE HOSTING PLATFORM FINDS THAT THE VIDEO CONTENT IS
20 SUFFICIENTLY NEWSWORTHY OR OF OTHER PUBLIC INTEREST THAT OUTWEIGHS THE
21 PRIVACY INTERESTS OF THE MINOR INVOLVED.
22 3. AN ONLINE HOSTING PLATFORM IS NOT LIABLE FOR GOOD FAITH
23 DETERMINATIONS MADE UNDER SUBSECTION G OF THIS SECTION.
24 H. AN ONLINE HOSTING PLATFORM IS NOT LIABLE FOR ANY CLAIM THAT IS
25 BASED ON THE ONLINE HOSTING PLATFORM'S GOOD FAITH RELIANCE ON THE
26 INFORMATION SUBMITTED AND FOR REMOVING CONTENT THAT WAS IDENTIFIED BY AN
27 INDIVIDUAL. THIS SUBSECTION APPLIES EVEN IF IT IS LATER REVEALED THAT THE
28 INDIVIDUAL WHO MADE THE REQUEST DID SO IN ERROR OR IN BAD FAITH.
29 I. THIS SECTION DOES NOT:
30 1. AFFECT A RIGHT OR REMEDY AVAILABLE UNDER ANY OTHER LAW OF THIS
31 STATE.
32 2. IMPOSE LIABILITY ON AN ONLINE HOSTING PLATFORM FOR CONTENT THAT
33 IS CREATED BY A THIRD PARTY.
34 3. IMPOSE LIABILITY FOR CONDUCT THAT IS CONSISTENT WITH THE
35 COMMUNICATIONS DECENCY ACT OF 1996 (P.L. 104-104; 110 STAT. 133).
36 23-349. Unlawful financial benefit; sexual depiction of
37 minors; prohibition; exceptions
38 A. IT IS UNLAWFUL TO FINANCIALLY BENEFIT FROM KNOWINGLY OR
39 INTENTIONALLY PRODUCING OR DISTRIBUTING PUBLICLY, INCLUDING BY COMPUTER,
40 ANY VISUAL DEPICTION OF A MINOR WITH THE INTENT TO SEXUALLY GRATIFY OR
41 ELICIT A SEXUAL RESPONSE IN THE VIEWER OR ANY OTHER PERSON.
42 B. IF A MINOR IS INCLUDED IN THE VIDEO CONTENT, AN ONLINE HOSTING
43 PLATFORM SHALL DEVELOP AND IMPLEMENT A RISK-BASED STRATEGY TO HELP
44 MITIGATE RISKS RELATED TO THE MONETIZATION OF THE KNOWING AND INTENTIONAL
45 SEXUALIZATION OF A MINOR. THIS RISK-BASED STRATEGY MUST BE DOCUMENTED AND

1 REASSESSED ON A REASONABLE RECURRING BASIS. [AN ONLINE HOSTING PLATFORM
2 MAY USE EXISTING TRUST AND SAFETY SYSTEMS AND POLICIES TO SATISFY THIS
3 REQUIREMENT.] AT THE DISCRETION OF THE ONLINE HOSTING PLATFORM, THE
4 RISK-BASED STRATEGY MAY INCLUDE ANY OF THE FOLLOWING:
5 1. POLICIES THAT GOVERN CONTENT AND RELATED MONETIZATION.
6 2. RESTRICTIONS OF FEATURES ON CONTENT FEATURING MINORS.
7 3. THE USE OF AUTOMATED SYSTEMS TO IDENTIFY AND ENFORCE AGAINST
8 POTENTIALLY PROBLEMATIC CONTENT AND ACCOUNTS.
9 4. THE INCLUSION OF GUARDRAILS TO MITIGATE AGAINST SYSTEMS THAT ARE
10 OF INTEREST TO OFFENDERS.
11 5. QUALITY ASSURANCE PROCESSES RECURRING AT REASONABLE INTERVALS TO
12 ENSURE THAT MITIGATIONS ARE WORKING AS INTENDED.
13 C. ONLINE HOSTING PLATFORMS SHALL MAKE PUBLICLY AVAILABLE
14 INFORMATION THAT INCLUDES:
15 1. THE ~~LEGAL~~ REQUIREMENTS AND INFORMATION THAT EXPLAIN THE RISKS
16 AND STEPS THAT ARE NECESSARY TO PROTECT MINORS WHO APPEAR IN VIDEO
17 CONTENT.
18 2. ANY INFORMATION ABOUT THE ONLINE HOSTING PLATFORM'S POLICIES,
19 SETTINGS AND BEST PRACTICES FOR FEATURING MINORS THAT ARE:
20 (a) PUBLICLY AVAILABLE.
21 (b) EASILY UNDERSTANDABLE TO BOTH ADULTS AND MINORS.
22 (c) INFORMED BY RESEARCH AND OUTSIDE EXPERTISE.
23 D. A MINOR MAY COMMENCE AN ACTION TO ENFORCE THIS SECTION. [AN
24 ONLINE HOSTING PLATFORM MAY NOT BE A PARTY TO THE ACTION IF THE ONLINE
25 HOSTING PLATFORM HAS COMPLIED WITH THE REQUIREMENTS PRESCRIBED IN
26 SUBSECTIONS B AND C OF THIS SECTION.] THE COURT MAY AWARD TO A MINOR WHO
27 PREVAILS IN ANY ACTION BROUGHT IN ACCORDANCE WITH THIS SECTION THE
28 FOLLOWING DAMAGES:
29 1. ACTUAL DAMAGES.
30 2. PUNITIVE DAMAGES.
31 3. THE COSTS OF THE ACTION, INCLUDING ATTORNEYS FEES AND LITIGATION
32 COSTS.
33 E. THIS SECTION DOES NOT:
34 1. AFFECT A RIGHT OR REMEDY AVAILABLE UNDER ANY OTHER LAW OF THIS
35 STATE.
36 2. AFFECT ANY LAWFULLY AUTHORIZED INVESTIGATIVE OR PROTECTIVE OR
37 INTELLIGENCE ACTIVITY OF A LAW ENFORCEMENT OR INTELLIGENCE AGENCY OF THE
38 UNITED STATES, THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE.
39 3. APPLY IN THE CASE OF AN INDIVIDUAL ACTING IN GOOD FAITH TO
40 REPORT UNLAWFUL ACTIVITY OR IN PURSUANCE OF A LEGAL, PROFESSIONAL OR OTHER
41 LAWFUL OBLIGATION.
42 4. APPLY IN THE CASE OF A DOCUMENT PRODUCTION OR FILING ASSOCIATED
43 WITH A LEGAL PROCEEDING.

Senate Amendments to H.B. 2192

1 5. APPLY TO AN ONLINE HOSTING PLATFORM WITH REGARD TO CONTENT
2 PROVIDED BY CONTENT CREATORS UNLESS THE ONLINE HOSTING PLATFORM
3 INTENTIONALLY SOLICITS OR KNOWINGLY AND PREDOMINANTLY DISTRIBUTES UNLAWFUL
4 CONTENT.

5 6. IMPOSE LIABILITY IN A MANNER THAT IS INCONSISTENT WITH 47 UNITED
6 STATES CODE SECTION 230.

7 [7. IMPOSE LIABILITY ON AN ONLINE HOSTING PLATFORM FOR CONTENT THAT
8 IS CREATED BY A THIRD PARTY OR REQUIRE PROACTIVE MONITORING OF
9 USER-GENERATED CONTENT.]

10 Enroll and engross to conform

11 Amend title to conform

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